

BALANCED RESIDENTIAL RENTAL TEMPLATE - COMPLETE ALL BLANKS AND ATTACH INVENTORY

RESIDENTIAL RENTAL AGREEMENT

Balanced / lower-risk sample for landlord and tenant

Important: This is a general India-oriented template, not a substitute for state/UT-specific legal advice. The parties should verify ownership, identity, stamp duty, registration, police verification, society rules, and any applicable rent-control or tenancy law before signing.

Agreement date	___ / ___ / 20___
Landlord / Owner	[FULL LEGAL NAME, ID DETAILS AND ADDRESS]
Tenant	[FULL LEGAL NAME, ID DETAILS AND CURRENT ADDRESS]
Rented premises	[FULL ADDRESS, UNIT, PARKING, STORAGE AND FURNISHING DETAILS]
Permitted use	Private residential use by the Tenant and approved occupants listed in Schedule A
Term	11 months from [START DATE] to [END DATE], unless renewed in writing
Monthly rent	INR _____, due by the 5th day of each month
Security deposit	INR _____ (recommended: not more than two months rent, subject to applicable law)

Agreed Terms

- Grant of tenancy.** The Landlord lets the Premises to the Tenant for the Term and Permitted Use stated above, together with the fixtures, furniture, parking, and access rights described in the schedules. No ownership or permanent interest is transferred.
- Rent and receipt.** The Tenant shall pay rent by bank transfer or another traceable method agreed in writing. The Landlord shall acknowledge receipt. Rent shall not increase during the Term unless both parties sign a written amendment permitted by applicable law.
- Grace period and late fee.** A five-day grace period applies. After that period, a one-time late fee of INR _____ may be charged if reasonable and lawful. The Landlord shall first send a written reminder. Repeated non-payment remains a breach subject to the notice and cure procedure below.
- Security deposit.** The deposit is refundable and shall not be treated as advance rent unless both parties agree in writing. Within 15 business days after vacant possession and return of keys, the Landlord shall refund the balance with an itemised statement of deductions and supporting bills or reasonable estimates. Deductions may cover unpaid rent, unpaid tenant utilities, missing items, and damage beyond normal wear and tear.
- Move-in condition report.** The parties shall jointly inspect the Premises, record meter readings, and sign the room-by-room inventory and condition report in Schedule B. Date-stamped photographs may be attached. Pre-existing defects listed there shall not be charged to the Tenant.
- Landlord maintenance.** The Landlord shall keep the structure, roof, external walls, major plumbing, electrical supply system, and owner-provided fixed installations in reasonably safe and usable condition, except where damage is caused by the Tenant or occupants. The Landlord shall address urgent habitability or safety issues promptly after notice.
- Tenant maintenance.** The Tenant shall keep the interior reasonably clean, use fixtures with due care, replace ordinary consumables, promptly report leaks or hazards, and pay for damage caused by the Tenant, approved occupants, guests, or pets beyond normal wear and tear.
- Repairs and access for work.** The Tenant shall allow reasonable access for repairs. Except in an emergency, the Landlord shall give at least 24 hours prior notice and schedule entry at a reasonable time. The Landlord shall minimise disruption and secure the Premises after entry.

BALANCED / LOWER-RISK SAMPLE - LOCAL REVIEW REQUIRED

- 9. Privacy and quiet enjoyment.** So long as the Tenant complies with this Agreement, the Tenant may peacefully use the Premises without unreasonable interference. Retained keys shall be used only for authorised access. CCTV or access records, if any, shall be handled for a defined security or legal purpose and not placed inside private living areas.
- 10. Utilities and recurring charges.** The Tenant shall pay metered electricity, water, gas, internet, and other services consumed by the Tenant. The Landlord shall pay property tax, owner insurance, structural repair costs, sinking-fund contributions, and ownership-related society charges, unless applicable law or a clearly stated written schedule provides otherwise.
- 11. Occupants, guests, pets, and subletting.** Approved occupants are listed in Schedule A. Reasonable guests are permitted subject to law and society rules. Pets are [permitted / not permitted / permitted with conditions]. The Tenant shall not assign or sublet the Premises without the Landlord's prior written consent, which shall not be unreasonably delayed where local law permits.
- 12. Safety and lawful use.** The Tenant shall not conduct unlawful activity, create a nuisance, store hazardous materials beyond normal household quantities, or make structural alterations without written approval. The Landlord confirms, to the best of the Landlord's knowledge, that the Premises may lawfully be used as a residence.
- 13. Insurance and personal property.** The Landlord's insurance does not cover the Tenant's personal property. The Tenant may obtain renter or contents insurance. Each party remains responsible for loss caused by its own negligence, wilful misconduct, or breach, subject to applicable law.
- 14. Notice of breach and cure.** Except for an emergency or serious unlawful conduct, a party alleging breach shall give written notice describing the breach and allow at least 10 days to cure a monetary breach and 15 days to cure another remediable breach. Longer periods apply where required by law or reasonably necessary to complete repairs.
- 15. Early termination.** Either party may terminate without alleging breach by giving 30 days written notice, unless the parties enter a fixed lock-in period of ____ months. During any lock-in, early termination charges shall be limited to documented, reasonable loss after credit for rent received from a replacement tenant. The Landlord shall reasonably mitigate loss.
- 16. Termination for uninhabitable conditions.** If essential services or serious safety defects make the Premises substantially unfit and the Landlord does not begin reasonable corrective action after written notice within the time required by law, the Tenant may pursue available legal remedies, including termination where permitted, without waiving claims.
- 17. Possession and eviction.** Neither party shall use force, threats, lockout, disconnection of essential services, or removal of belongings to resolve a dispute. Recovery of possession shall follow the Agreement and applicable legal process. The Tenant shall return keys and vacant possession on lawful termination.
- 18. Move-out and deposit deductions.** The parties shall conduct a joint move-out inspection where practicable. The Tenant may remedy minor issues before handover. Normal wear and tear shall not be charged. Any abandoned property shall be handled only after reasonable written notice and in accordance with applicable law.
- 19. Renewal.** Renewal requires a fresh written agreement or written extension signed by both parties. Proposed rent revision should be communicated at least 30 days before expiry. Continued occupation after expiry shall be governed by written consent and applicable law, not by an undisclosed penalty.
- 20. Notices.** Notices shall be sent to the postal addresses, email addresses, or messaging numbers stated in Schedule C. A notice is treated as received when delivery is confirmed, subject to any mandatory legal method of service.
- 21. Dispute resolution.** The parties shall first attempt good-faith negotiation for 15 days. They may then use mediation. If unresolved, either party may approach the Rent Authority, Rent Court, tribunal, civil court, or other forum having jurisdiction under applicable law. Any arbitration clause must be separately reviewed for validity and mutual agreement.
- 22. Costs and taxes.** Each party shall bear its own advisory costs. Stamp duty, registration fees, and document preparation charges shall be shared as follows: [INSERT AGREED SHARING], subject to mandatory law.
- 23. No waiver and severability.** A delay in enforcing a right is not a permanent waiver. If a provision is invalid or unenforceable, it shall be limited or severed to the minimum extent necessary, and the remainder shall continue where lawful.
- 24. Entire agreement and amendments.** This document and its signed schedules contain the entire agreement. Any amendment must be in writing and signed by both parties. Neither party may unilaterally alter the terms.

Schedule A - Approved occupants and use

Approved occupants	1. _____ 2. _____ 3. _____ _____
--------------------	-------------------------------------

BALANCED / LOWER-RISK SAMPLE - LOCAL REVIEW REQUIRED

Pets	[NONE / DETAILS AND CONDITIONS]
Parking / storage	[SPACE NUMBER AND ACCESS CONDITIONS]
Home working	[PERMITTED SUBJECT TO NO NUISANCE / OTHER AGREED TERMS]

Schedule B - Inventory and condition report

Area / Item	Quantity	Condition at move-in	Meter / Photo ref.	Remarks
Entrance / keys				
Living room				
Bedroom(s)				
Kitchen / appliances				
Bathroom(s)				
Electrical meter				
Water meter				
Parking / storage				

Schedule C - Contact and payment details

Landlord phone / email	[PHONE] / [EMAIL]
Tenant phone / email	[PHONE] / [EMAIL]
Rent payment account	[BANK / UPI / ACCOUNT DETAILS]
Emergency maintenance contact	[NAME / PHONE / HOURS]
Notice address	[POSTAL ADDRESS OR OTHER AGREED SERVICE DETAILS]

Legal framework note

This sample is India-oriented but not state-specific. A lease is generally governed by the written contract together with applicable central and state/UT laws. Registration, stamp duty, rent-control/tenancy rules, police verification, and dispute forums vary by location. Seek a local advocate before signing.

- Transfer of Property Act, 1882 - including the statutory concept of a lease and general rules on duration/termination where applicable.
- Registration Act, 1908, Section 17 - registration is compulsory for certain leases, including leases from year to year or for a term exceeding one year.
- Model Tenancy Act, 2021 - a model framework intended to balance landlord and tenant interests; actual applicability depends on adoption or adaptation by the relevant state/UT.

Signatures

The parties acknowledge that they have read and understood this document and have had the opportunity to obtain independent legal advice.

LANDLORD / OWNER	TENANT
Signature: _____	Signature: _____
Name: _____	Name: _____
Date: _____	Date: _____

WITNESS 1	WITNESS 2
Signature: _____	Signature: _____
Name: _____	Name: _____
Address: _____	Address: _____